

Borra Nandennagari Venkata Vani vs Nandennagari Manoj on 31 October, 2025

APHC010363482025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

FRIDAY, THE THIRTY FIRST DAY OF OCTOBER
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 221/2025

Between:

1. BORRA @ NANDENNAGARI VENKATA VANI, W/O. NANDENNAGARI MANOJ, D/O. BORRA VENKATA RAMANA, AGED 29 YEARS, R/O. PLOT NO.247, TARAKARAMA NAGAR, KARAKAMBADI, RENIGUNTA RAOD, TIRUPATI. NOW RESIDING AT ATCHEMPETA VILLAGE, RACHERLA MANDAL, PRAKASAM DISTRICT.

...PETITIONER

AND

1. NANDENNAGARI MANOJ, s/o. Mallikarjuna, Aged 32 Years, Occ Software Employee, R/o. D.No.1-2, S. Nadimpalli Village, Somala Mandal, Chittoor District.

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to order to withdraw the HMOP.No.57 of 2024 on the file of the court of the Civil Judge (Senior Division), Punganur, Chittoor District to the Court of Senior Civil Judge, Markapur, Prakasam District in the interest of justice and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings including appearance of the petitioner in H.M.O.P.No.57 of 2024 on the file of the court of the Civil Judge (Senior Division), Punganur, Chittoor District, pending disposal of the present Tr.C.M.P. and pass

Counsel for the Petitioner:

1. SUBBA RAO JANDHYAM

Counsel for the Respondent:

1. D SATYAVATHI

THE HON'BLE SRI JUSTICE V. GOPALA KRISHNA RAO

TRANSFER CIVIL MISCELLANEOUS PETITION No.221 of 2025

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for short „the C.P.C.) seeking for withdrawal of H.M.O.P.No.57 of 2024, which is pending before the Senior Civil Judge, Punganur, Chittoor District and transfer the same to the Senior Civil Judge, Markapur, Prakasam District, for trial and disposal of the same.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent/husband and the marriage of the petitioner with the respondent was solemnized on 16.02.2023. After that, in view of the matrimonial disputes between the spouses, the petitioner/wife has been residing separately in her parents house and depending upon the mercy of her parents at Atchempeta Village, Prakasam District. The petitioner/wife pleaded that in view of the harassment made by the respondent/husband, she lodged a complaint against the respondent/husband which was registered as Crime No.92 of 2024, for the offence punishable under Section 498-A r/w 34 I.P.C. and under Sections 3 & 4 of the Dowry Prohibition Act, 1961, before the Racherla Police Station, after completion of investigation, Police filed a charge sheet which was numbered as C.C.No.593 of 2024 on the file of the Additional Judicial Magistrate of First Class, Giddalur. The petitioner/wife further pleaded that she filed other two (2) cases against the respondent/husband herein i.e., Maintenance Case vide M.C.No.23 of 2024, under Section 125 of the Cr.P.C. seeking maintenance from the respondent/husband & Domestic Violence Case vide D.V.C.No.13 of 2024 on the file of the Additional Judicial Magistrate of First Class, Giddalur, Prakasam District, under Section 12 of the Domestic Violence Act, 2005 and the said three (3) cases are pending for adjudication before the competent Courts at Giddalur.

II. The petitioner/wife would further contend that with a view to cause inconvenience to the her, the

respondent/husband herein had filed divorce petition i.e., vide H.M.O.P.No.57 of 2024, which is pending before the Senior Civil Judge, Punganur, Chittoor District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

III. The petitioner/wife further pleaded that she being a woman, residing separately in her parents house and depending upon the mercy of her parents at Atchempeta Village, Prakasam District and the distance between the Atchempeta Village and Punganur is more than 500 Kms, it is very difficult for her to travel to attend the divorce case proceedings which was filed by the respondent/husband herein before the Court at Punganur on each and every adjournment without any male assistance and that she was constrained to file the present petition, seeking for withdrawal of H.M.O.P.No.57 of 2024, on the file of the Senior Civil Judge, Punganur, Chittoor District and transfer the same to the Senior Civil Judge, Markapur, Prakasam District, for trial and disposal of the same.

3. Learned counsel for the respondent would contend that the parents of the petitioner/wife herein are currently residing in Tirupati, and only with an intention to harass the respondent/husband, the petitioner/wife has filed three (3) cases against the respondent/husband before the Courts at Giddaluru. If the parents of the petitioner/wife are really residing in Tirupati, there was no necessity for her to travel more than 200 kms from Tirupati to Giddaluru to file the aforesaid three (3) cases against the respondent/husband that too in a remote area situated in Prakasam District.

4. Learned counsel for the respondent contended that the petitioner/wife is currently residing in Bangalore and working in a private organization, and her parents are residing in Tirupati, hence, there are no valid grounds to consider the request made by the petitioner/wife in the present petition and the present Transfer Civil Miscellaneous Petition may be dismissed. He further submitted that if this Court is inclined to transfer the present case, i.e., H.M.O.P.No.57 of 2024, from Punganur, it may be transferred to the competent Court at Tirupati, which would be convenient for both parties. Learned counsel for the petitioner submitted that subsequent to the marriage, the petitioner/wife had worked for some period in a private organization at Bangalore, from 2024 onwards she has not been working in Bangalore and has been residing in her parents house at Atchempeta Village, Prakasam District. To disprove the same, the respondent/husband did not choose to file any prima facie proof to show that the petitioner/wife is presently residing in Bangalore and working in a private organization. The learned counsel for the respondent further submitted that the respondent/husband is working as a software employee and is currently residing in Bangalore.

5. Heard Sri J. Subba Rao, learned counsel for the petitioner and Smt. D. Satyavathi, learned counsel for the respondent.

6. Perused the material available on record.

7. The material on record prima facie goes to show that in view of the matrimonial disputes between the spouses, the petitioner/wife has been residing separately in her parents house depending upon the mercy of her parents at Atchempeta Village, Prakasam District. She has instituted three (03) cases against the respondent/husband herein viz., C.C.No.593 of 2024, M.C.No.23 of 2024 & D.V.C.No.13 of 2024 on the file of the Additional Judicial Magistrate of First Class, Giddaluru, Prakasam District, the same are pending for adjudication and the respondent/husband is also attending the said case proceedings before the competent Courts at Giddaluru. Furthermore, the material on record further discloses that the respondent/husband has instituted a divorce petition

against the petitioner/wife herein i.e., vide H.M.O.P.No.57 of 2024, on the file of the Senior Civil Judge, Punganur, Chittoor District, under Section 13(1)(ia) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is also pending for adjudication.

8. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

9. The Apex Court in a case of N.C.V. AISHWARYA Vs A.S. SARAVANA KARTHIK SHA², held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

(2000) 10 SCC 304 2022 LiveLaw (SC) 627

10. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down by the aforesaid case laws and on considering the facts and circumstances of the case that in matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband and petitioner/wife has been staying separately depending upon the mercy of her parents at Atchempeta Village, it is very difficult for her to travel from Atchempeta Village to Punganur, Chittoor District to attend the divorce case proceedings without any male support, therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, H.M.O.P.No.57 of 2024, which is pending before the Senior Civil Judge, Punganur, Chittoor District, to the Senior Civil Judge, Markapur, Prakasam District. Further, on considering the submissions made by the learned counsel for the respondent that the respondent/husband herein is a Software Employee and currently residing in Bangalore, therefore, it is desirable to dispense with the personal appearance of the respondent/husband herein i.e., the petitioner in H.M.O.P.No.57 of 2024, on the file of the before the Senior Civil Judge, Punganur, Chittoor District, before the transferee Court, except on the days when his personal appearance is required before the said Court as per law.

11. In the result, the Transfer Civil Miscellaneous Petition is allowed and H.M.O.P.No.57 of 2024, on the file of the Senior Civil Judge, Punganur, Chittoor District, is hereby withdrawn and transferred to the Senior Civil Judge, Markapur, Prakasam District. The learned Senior Civil Judge, Punganur, Chittoor District, shall transmit the case record in H.M.O.P.No.57 of 2024, to the Senior Civil Judge,

Markapur, Prakasam District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. The transferee Court i.e., learned Senior Civil Judge, Markapur, Prakasam District, is hereby directed not to insist for the personal appearance of the respondent herein i.e., the petitioner in H.M.O.P.No.57 of 2024, as long as his counsel is attending the Court proceedings and representing the case except on the day when re-conciliation proceedings are being taken up or on the day when his cross-examination is required to be recorded or on any other day when his personal appearance is required as directed by the learned Senior Civil Judge, Markapur, Prakasam District. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

31.10.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: